



U.S. Department
of Transportation

Research and
Special Programs
Administration

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10235 (EXTENSION)
ORIGINAL January 2, 1990

In accordance with 49 CFR 107.105 of the Department of Transportation (DOT) Hazardous Materials Regulations DOT-E 10235 is hereby extended for the party(ies) listed below by changing the expiration date in paragraph 10 to August 31, 1997. This change is effective from the issue date of this extension. All other terms of the exemption remain unchanged.

This extension applies only to party(ies) listed below based on the application(s) received in accordance with 49 CFR 107.105. This extension constitutes a necessary part of this exemption and must be attached to it.

Alan I. Roberts
Alan I. Roberts
Associate Administrator
for Hazardous Materials Safety

SEP 28 1995

(DATE)

Dist: FRA

EXEMPTION HOLDER

APPLICATION DATE

U.S. Department of Defense
Falls Church, VA

August 18, 1995

EXPIRED
NOT ACTIVE



U.S. Department
of Transportation

Research and
Special Programs
Administration

JAN 2 1990

400 Seventh Street, S.W.
Washington, D.C. 20590

DOT-E 10235

1. The United States Department of Defense, Falls Church, Virginia, is hereby granted an exemption from certain provisions of this Department's Hazardous Materials Regulations to offer a package prescribed herein of certain hazardous materials for transportation in commerce subject to the limitations and special requirements specified herein. This exemption authorizes the use of tank car tanks conforming to a DOT 105J500W specification, except that the tank and the tank head puncture resistance systems may be manufactured from certain high alloy steels for the use in transportation of a poisonous gas and certain flammable liquids described below, and provides no relief from any regulation other than as specifically stated.

2. BASIS. This exemption is based on the Department of Defense application of July 19, 1989, submitted in accordance with 49 CFR 107.103, and the public proceeding thereon.

3. HAZARDOUS MATERIALS (Descriptor and class). Hydrazine, anhydrous; methylhydrazine, dimethylhydrazine, unsymmetrical; and mixtures of hydrazine, anhydrous and dimethylhydrazine, unsymmetrical, each classed as a flammable liquid, and nitrogen tetroxide classed as a Poison A.

4. PROPER SHIPPING NAME (49 CFR 172.101). Hydrazine, anhydrous; Methylhydrazine; Dimethylhydrazine, unsymmetrical; Flammable liquid, poisonous n.o.s.; and Nitrogen tetroxide.

5. REGULATION AFFECTED. 49 CFR 173.3a, 173.119(m), 173.145, 173.276, 173.336, 179.100-23 and 179.101-1.

6. MODES OF TRANSPORTATION AUTHORIZED. Rail freight.

7. SAFETY CONTROL MEASURES.

a. Packagings prescribed conform to DOT 105J500W specification tank car tanks, except that the tank and the tank head puncture resistance systems may be manufactured from ASTM A240 Type 304L or Type 347 stainless steel pressure vessel plate.

b. Prior to offering these tanks for transportation, the applicant shall furnish OHMT with an approved AAR Form 4-2.

c. Each tank car transporting nitrogen tetroxide, methylhydrazine, dimethylhydrazine, unsymmetrical or mixtures of dimethylhydrazine, unsymmetrical and hydrazine, anhydrous must be marked "INHALATION HAZARD" in letters at least four inches high on a contrasting background in close proximity to the required placards.

8. SPECIAL PROVISIONS.

a. Persons who receive packages covered by this exemption may reship them pursuant to the provisions of 49 CFR 173.22a.

b. Each tank car must be stenciled "DOT-E 10235" in four inch letters

c. The following additional requirements apply to the transportation of materials requiring special packaging approval as specified in 49 CFR 173.3a:

1. This exemption serves as a special packaging approval under the provisions of 49 CFR 173.3a(a)(3) for the shipment of methylhydrazine; dimethylhydrazine, unsymmetrical; mixtures of dimethylhydrazine, unsymmetrical and hydrazine, anhydrous; and nitrogen tetroxide;

2. In addition to the requirements of 49 CFR 171.15 and 171.16, the Exemptions Branch, Office of Hazardous Materials Transportation (OHMT) must be notified of any incident involving damage to the packaging or loss of contents of materials shipped under this exemption;

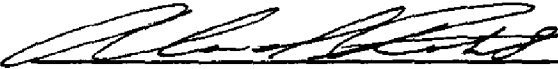
3. The Exemptions Branch, OHMT shall be advised of the causes of the incident and any remedial action taken, as a result of the incident as soon as practical after its occurrence; and

4. The Exemptions Branch, OHMT must be advised annually, within 30 days after the end of each calendar year, of the shipping experience of the material covered by this exemption. Failure to comply may result in the immediate suspension of this exemption.

9. REPORTING REQUIREMENTS. Any incident involving loss of package contents or packaging failure must be reported to the OHMT as soon as practicable.

10. EXPIRATION DATE. December 1, 1991.

Issued at Washington, D.C.:


Alan I. Roberts
Director
Office of Hazardous Materials
Transportation

JAN 2 1990

Date

Address all inquiries to: Director, Office of Hazardous Materials Transportation, Research and Special Programs Administration, U.S. Department of Transportation, Washington, D.C. 20590. Attention: Exemptions Branch.

Dist: FRA